

Form No: HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Case No. Writ Petition No. 73362/2023

M/s Pakmaco (Pvt) Ltd. **Versus** Federation of Pakistan etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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02.07.2025	Ch. Fasih uz Zaman Basit, Advocate for the petitioner. Mr. Muhammad Anwar Khan, Assistant Attorney General. Mr. Umar Sharif, Advocate for respondents No. 2 to 7.
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The petitioner company, having participated in procurement process initiated by the Sui-Northern Gas Pipelines Limited (“**the respondent-SNGPL**”), laid challenge to the impugned condition for depositing appeal fee in accordance with Schedule-II of the Redressal of Grievance Regulations, 2021 (“**Regulations**”) pertaining to the mechanism for addressing complaints/appeals related to procurement processes. On 06.11.2023, following order was passed in present petition:

“Learned counsel for the petitioner states that upon the direction of this Court respondent/Appellate Authority was obligated to hear the appeal of the petitioner against the decision of the Grievance Redressal Committee without enforcing the clause pertaining to demand of fee, however, through impugned letter dated 24.10.2023, the petitioner has been asked to deposit the non-refundable prescribed fee in terms of Schedule II of Redressal of Grievance Regulations, 2021. Adds that this was precisely the challenge in the earlier round of litigation bearing W.P. No.67459/2023 in which the direction was passed.

2. When the Writ Petition No.67459/2023 was heard, the legal question raised today

was not pressed and a direction was sought for decision on the appeal, therefore, it will be appropriate to address the legal question involved in the first instance. Let notice be issued to the respondents through ordinary mode, registered Post AD as well as courier service, at the expense of the petitioner to be deposited within 07-days for 05.12.2023.

C.M. No.1 of 2023

3. Dispensation sought for is allowed, subject to all just and legal exceptions. C.M. stands **disposed of**.

C.M. No.2 of 2023

4. Notice for the above date. In the meanwhile, proceedings before the learned Appellate Authority shall remain stayed.”

(Emphasis supplied)

2. It is worth-mentioning that interim relief was granted in the present petition and proceedings before the Appellate Authority, under the Regulations, were stayed and when the matter was taken up on 05.12.2023, learned counsel for the respondent-SNGPL objected to the maintainability of the petition and the case was fixed for 08.12.2023 on which date it was averred, on behalf of the respondent-SNGPL, that order dated 13.10.2023 passed by this Court in Writ Petition No.67459/2023 was tampered, which order is referred in order dated 06.11.2023 of this Court, passed in present petition. The tampered portion indicates that through order dated 13.10.2023, injunctive relief was granted to the petitioner, in the earlier round of litigation, which fact was incorrect as no stay was granted. Following order was passed on 08.12.2023:

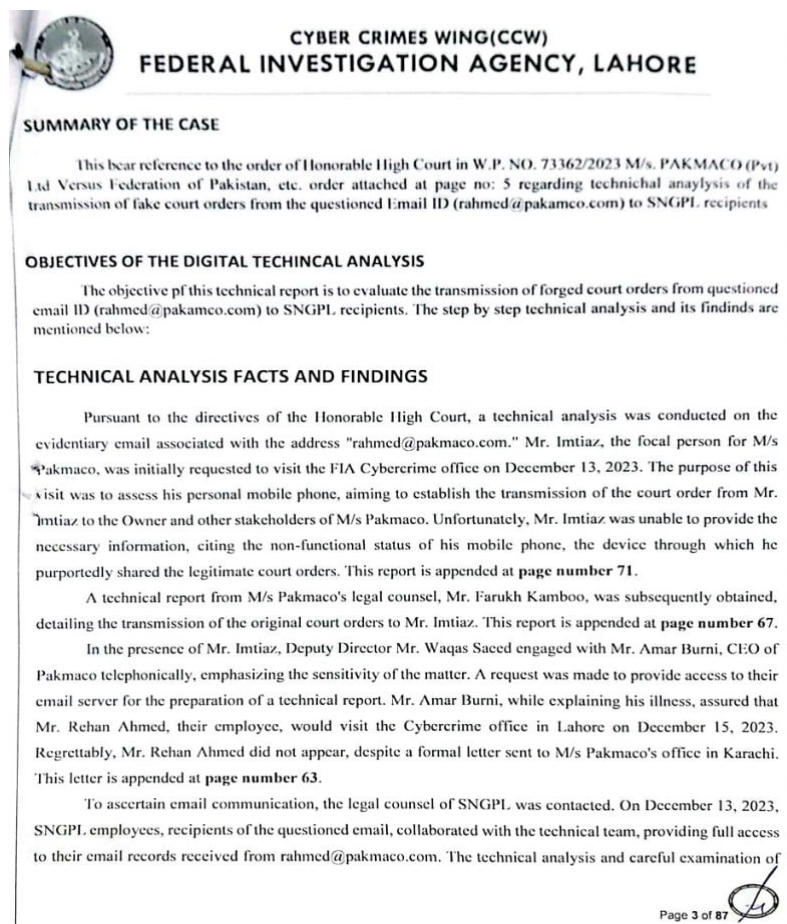
“Mr. Umer Sharif, Advocate for respondent-SNGPL seeks permission to submit report in the matter, which is taken on record. On the strength of the said report alongwith documents appended with the same, learned counsel for the respondent-SNGPL submits that fraud and forgery has been committed not only with the respondent-SNGPL but also with the Court inasmuch as the petitioner approached the respondent-SNGPL with the copy of order of this Court dated 13.10.2023 passed in W.P. No.67459/2023 that has been tampered with and Paragraph No.3 of the order has been altered and observation in terms of interim relief in favour of the petitioner has been inserted just to jeopardize the procurement process of the respondent-SNGPL. Learned counsel for the petitioner was confronted with the copy of the said order in open Court. He could not refute the disconnect/alteration between the copy of order shared with respondent-SNGPL and the one actually passed. Let Imtiaz Ahmad Chaudhry, the authorize signatory of the petitioner company, appear in person, on the next date of hearing, without fail, to explain the conduct of the petitioner. Relist on 11.12.2023, when the matter will be taken up after urgent cases.”

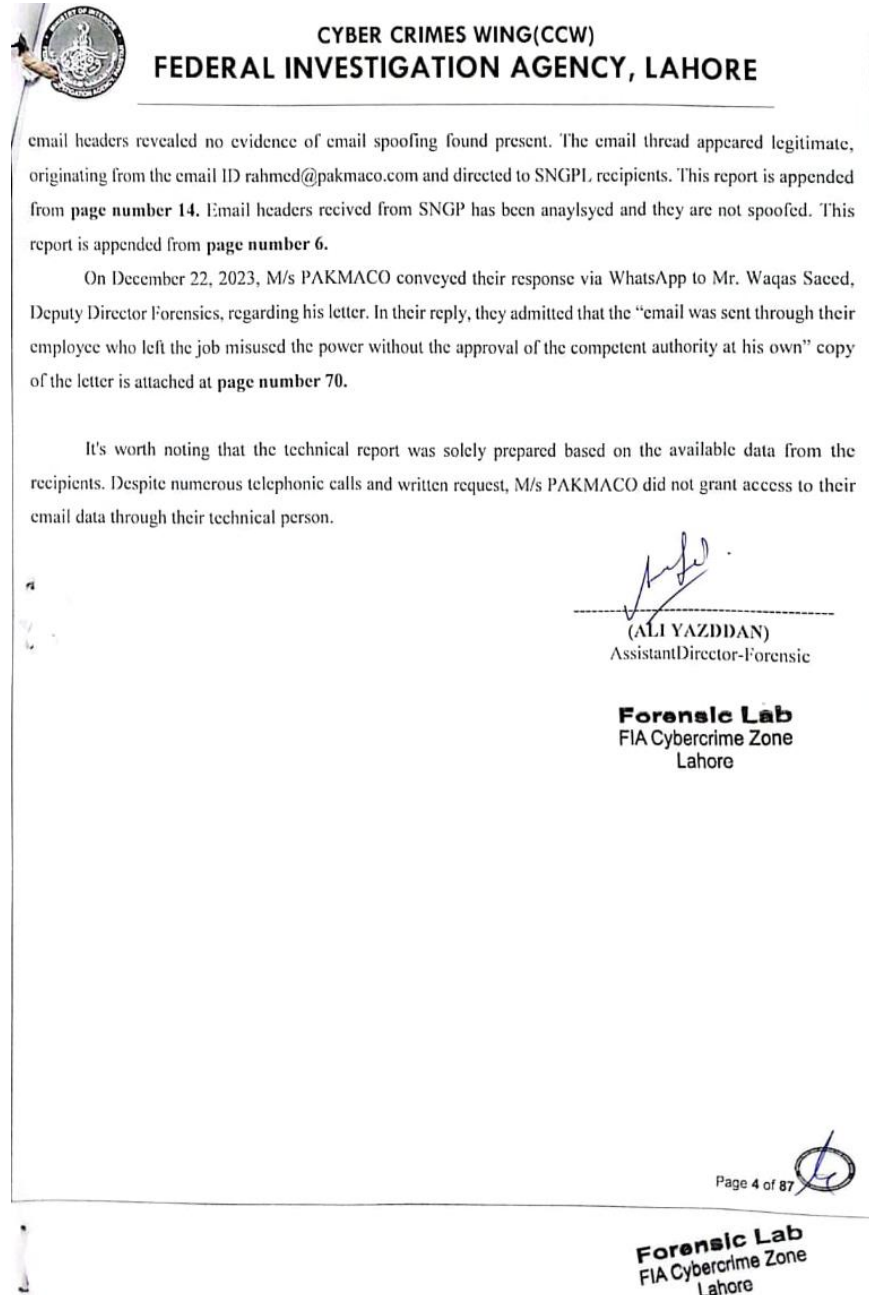
3. On 11.12.2023, in compliance with direction of this Court, Mr. Imtiaz Ahmed Chaudhry, Authorized Representative of the petitioner company appeared, and following order was passed:

“In compliance of order dated 08.12.2023, Mr. Imtiaz Ahmed Chaudhry, authorized signatory of the petitioner-company is in attendance and on his instructions, learned counsel for the petitioner submits that alongwith email sent to respondent-SNGPL, certified copy of order of this Court was sent which does not contain any tampering. The said fact impliedly levels allegation against the respondent-SNGPL as if the said document has been tempered/prepared by it. Be that as it may, it is apparent that record of this Court has been tampered with in order to

get undue advantage, therefore, the matter needs to be investigated. Therefore, learned Assistant Attorney General shall ensure that a responsible officer not below Grade-18 from the Federal Investigation Agency attends the proceedings on **12.12.2023 (tomorrow)**.”

4. On 12.12.2023, officials of Federal Investigation Agency (“FIA”) appeared and submitted that the technical aspects of the matter as to whether the email with tampered order of this Court was originated by the petitioner company or the same was result of any tampering by the recipient company, *i.e.*, the respondent-SNGPL, can be ascertained once the access to the email servers of the petitioner company and the respondent-SNGPL is allowed. On behalf of the petitioner, learned counsel for the petitioner undertook to ensure cooperation and the FIA was directed to submit its report. The said report is available on record. Scanned copy thereof reads as under:





Once report was submitted by the FIA, an application bearing C.M. No.01/2024 was filed by the petitioner company, replacing its counsel without obtaining NOC from the previous counsel who filed the present petition for withdrawal of the main petition. The said C.M. was resisted by the respondent-SNGPL as depicted from order dated 23.01.2024, passed by this Court.

5. Today, Ch. Fasih uz Zaman Basit, Advocate who filed C.M. No.01/2024 has tendered appearance and submits that he has no ethical or legal ground to defend the act of

the petitioner company but to seek apology on its behalf and leaves the matter to the mercy of this Court.

6. Conversely, learned counsel for the respondent-SNGPL, alongwith learned Law Officer, states that the criminal intent with which the petitioner company has approached this Court does not merit any benevolence from this Court inasmuch as if the petitioner company will be let scot free, it will encourage unscrupulous minds to tamper with the judicial order(s).

7. Arguments heard. Record perused.

8. Before determining whether the Court should show leniency and restraint in passing a direction for proceeding against the unscrupulous who has tampered with the judicial record, it is appropriate to incorporate the actual order dated 13.10.2023 passed by this Court, which was tampered, as well as copy that was sent on behalf of the petitioner company and received by the respondent-SNGPL. Original order 13.10.2023 is reproduced below:

“Sole grievance of the petitioner is that respondent-SNGPL is procuring gas meters without adhering to the standards envisaged under the Public Procurement Laws for which petitioner approached the Grievance Redressal Committee, however, through a non-speaking order, application of the petitioner was dismissed, against which an appeal has been preferred by the petitioner before respondent No.8, available at page 26 of the present petition as Annex-J, but the same has not been decided so far, which is not only causing loss to the petitioner but also offends principle of transparency under the Public Procurement Laws. Learned counsel for the petitioner states that the petitioner will be satisfied if a direction is passed to respondent No.8 for expeditious decision thereof.

2. The request of learned counsel for the petitioner is tenable and has not been opposed by the learned Assistant Attorney General. Respondent No.8 is directed to look into the grievance of the petitioner and decide its appeal, if pending and not already decided, after providing an opportunity of hearing to the petitioner as well as all other stakeholders through a speaking order, in accordance with law expeditiously, preferably within a period of 30 days commencing from the date of receipt of certified copy of this order, under intimation to the Deputy Registrar (Judicial) of this Court.
3. Disposed of.”

Whereas scanned copy of the said order indicates that it was tampered with by the petitioner company and sent to the respondent-SNGPL by way of attachment, which fact has been confirmed by the Forensic Science Laboratory of FIA. The tampered copy reads as under:



CYBER CRIMES WING(CCW)
FEDERAL INVESTIGATION AGENCY, LAHORE

Fake document Attached in Email

For Private Use

Stamp: Sub-Section Copy High Court Lahore 14/11/23

Form No HC/MC-111
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
W.P No.67459/2023
M/s Pakasco (Private) Limited Versus Federation of Pakistan etc.

S No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
	13.10.2023	Mr. Farrukh Shahzad Kamboh, Advocate for the petitioner. Mr. Muhammad Anwar Khan, Assistant Attorney General

Sole grievance of the petitioner is that respondent-SNGPL is procuring gas meters without adhering to the standards envisaged under the Public Procurement Laws for which petitioner approached the Grievance Redressal Committee, however, through a non-speaking order, application of the petitioner was dismissed, against which an appeal has been preferred by the petitioner before respondent No 3, available at page 26 of the present petition as Annex-1, but the same has not been decided so far, which is not only causing loss to the petitioner but also offends principle of transparency under the Public Procurement Laws. Learned counsel for the petitioner states that the petitioner will be satisfied if a direction is passed to respondent No 8 for expeditious decision thereof.

2. The request of learned counsel for the petitioner is tenable and has not been opposed by the learned Assistant Attorney General. Respondent No 8 is directed to look into the grievance of the petitioner and decide its appeal, if pending and not already decided, after providing an opportunity of hearing to the petitioner as well as all other stakeholders through a speaking order, in accordance with law expeditiously, preferably within a period of 30 days commencing from the date of receipt of certified copy of

True Copy
Received by
29/11/23
Deputy Registrar
Lahore High Court

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Forensic Lab
FIA Cybercrime Zone
Lahore

CYBER CRIMES WING(CCW)
FEDERAL INVESTIGATION AGENCY, LAHORE

H.P.No. 73362/2023

this order, under intimation to the Deputy Registrar
(Judicial) of this Court

3. Respondent No. 2 will be bound to suspend the procurement of
Rotary Meters till the announcement of the decision by PPRA.

CANWAAK HUSSAIN
14/10/23

True Copy
14/10/23

Exhibit Copy Supply Section
14/10/23

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Forensic Lab
FIA Cybercrime Zone
Lahore

It is well-evident that para 3 of order dated 13.10.2023 of this Court was tampered and following line was inserted:

“3. Respondent No.2 will be bound to suspend the procurement of Rotary Meters till the announcement of the decision by PPRA.”

9. The above analysis of facts and perusal of report of the FIA depict the criminal intent on part of the petitioner company as order dated 13.10.2023 passed by this Court in the earlier round of litigation bearing W.P. No.67459/2023 was deliberately tampered by interpolating therein an observation to the effect that a stay

had been granted by this Court in its favour, whereas, as per judicial record, no such relief had ever been granted.

10. The tampered order was transmitted *via* email from an address created under the petitioner company's official domain, and it was actively used to mislead the respondent-SNGPL in relations to a procurement process and upon confrontation, the petitioner company undertook, through its authorized representative, that it would provide access to the said email account for forensic scrutiny to ascertain the actual position, however, despite the undertaking, the petitioner company has deliberately withheld cooperation as depicted from the report of the FIA. This conduct is not only breach of an undertaking but is an independent act of obstruction of justice and willful non-compliance of order of this Court. Moreover, in a further attempt to shield itself, the petitioner company has sought to place the entire blame on a former employee, asserting that he on his own used the email account to transmit the forged and tampered order and has since left the organization. This explanation is not only inherently implausible but utterly lacks credibility. It defies logic that an ordinary employee of a corporate entity, without any discernible benefit to himself, would on his own initiative create an email address under the company's official domain, forge and tamper a judicial order, and deploy the same to obstruct a competitive procurement process—an outcome that directly benefited the petitioner company alone. Such scapegoating of an employee, in the face of forensic evidence and admitted institutional benefit, constitutes nothing but an aggravated attempt to evade responsibility through false narrative and calculated misdirection. The record clearly reflects that the forged

order was used to suspend or delay a procurement process initiated by the respondent-SNGPL in which the petitioner company was a participant. The motive, opportunity, and advantage all point toward the culpability of the petitioner company, acting through its authorized representatives.

11. This Court is of the opinion that the integrity and sanctity of judicial proceedings form the bedrock of the justice system. The authenticity of judicial orders is not a matter of procedural formality—it is the very essence of rule of law. No person—natural or juristic—can be permitted to forge, manipulate, or misuse judicial orders for personal or institutional gain. The Courts are not mere dispute-resolution forums; they are vested with the solemn duty to uphold the public confidence in the administration of justice. Any assault on the credibility of their proceedings strikes at the very soul of justice and cannot be tolerated under any circumstance. The judicial process cannot and shall not be permitted to be reduced to an arena of strategic deceit. Judicial orders carry the imprimatur of the rule of law, and any tampering therewith strikes at the very heart of the institutional integrity. When such tampering is committed and benefit thereof is drawn in a commercial context, the act transcends the bounds of private fraud and becomes a direct assault on the public interest in relation to the function of the judiciary. Therefore, this Court is under a duty not merely to resolve disputes, but to protect the authenticity of its own record and the confidence that litigants and society repose in it.

12. It has been noted that the newly engaged counsel for the petitioner company has conducted himself with candour by expressly conceding that he finds no ethical or legal ground to justify the fraudulent conduct of his

client—petitioner company, and has accordingly tendered an apology on its behalf. While this professional stance is appreciated, it must be underscored that such an apology, however gracefully made, cannot become basis to persuade the Court to overlook deliberate and intentional fraud committed on behalf of the petitioner company. The process of administration of justice cannot be compromised through post-facto contrition when the offence strikes at the integrity of the judicial process itself. In present case, the gravity of the fraud committed on behalf of the petitioner company transcends private regret and demands institutional response.

13. In view of the above discussion, this Court finds the present petition to be wholly devoid of merit and hence, **dismissed** with cost of Rs. 1,000,000/- to be deposited in the bank account of the Diagnostic Centre of Lahore High Court Bar Association and receipt be placed on record failing which the same shall be recovered as arrears of land revenue. The Registrar of this Court is directed to get registered criminal case against the delinquent(s), in accordance with law.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting.

Judge